

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Applications nos. 38243/05 and 39486/08
by Eugen POPA and Mircea VINTILĂ
against Romania

The European Court of Human Rights (Third Section), sitting on 28 June 2011 as a Committee composed of:

Ján Šikuta, *President,*
Ineta Ziemele,
Kristina Pardalos, *judges,*

and Marialena Tsirli, *Deputy Section Registrar,*

Having regard to the above applications lodged on 19 October 2005 and 15 July 2008,

Having regard to the declarations submitted by the respondent Government on 14 April 2011 requesting the Court to strike the applications out of the list of cases and the applicants' replies to these declarations,

Having deliberated, decides as follows:

THE FACTS

The applicants are Romanian nationals. The Romanian Government ("the Government") were represented by their Agent, Mr. Răzvan-Horaţiu Radu from the Ministry of Foreign Affairs.

Both applications concern mainly the length of criminal proceedings against the applicants for various criminal offences. In application no. 38243/05 the proceedings have lasted for seven years and six months for three levels of jurisdiction. In application no. 39486/08 the proceedings have lasted for ten years and two months for three levels of jurisdiction.

COMPLAINTS

1. Invoking Article 6 § 1 of the Convention the applicants complained of the length of proceedings.

2. Relying on Article 5 §§ 1, 3 and 4 of the Convention, the applicant in application no. 38243/05 complained about the illegality of the pre-trial detention.

3. Relying on Article 5 § 5 of the Convention, the applicant in application no. 38243/05 further complained about the impossibility under Romanian law at the time to claim compensation for the illegal pre-trial detention.

4. Relying on Article 6 § 1 of the Convention, the applicant in application no. 39486/08 complained about the outcome of the criminal proceedings, impartiality of judges and lack of motivation of the courts' judgments.

5. Relying on Article 6 § 2 of the Convention, the applicant in application no. 39486/08 further complained about the breach of the presumption of innocence. He asserted that his conviction had been based on inconclusive evidence.

6. Relying on Article 3 of the Convention the applicant in application no. 39486/08 also complained that his first declaration had been given under torture.

7. Finally, relying on Article 13 of the Convention the applicant in application no. 39486/08 complained about the lack of an effective remedy in respect of the alleged breaches of the fairness of the domestic proceedings.

THE LAW

A. Complaints under Article 6 § 1 concerning the length of proceedings

The applicants complained under Article 6 § 1 of the Convention about the length of the criminal proceedings. This provision provides as follows:

> "In the determination of ...any criminal charge against him, everyone is entitled to a ... hearing within a reasonable time by [a] ... tribunal ..."

1. The Government's unilateral declarations

Following unsuccessful friendly settlement negotiations, the Government informed the Court that they proposed to make unilateral declarations with a view to resolving the issue raised by the applications. They further

requested the Court to strike out the applications in accordance with Article 37 of the Convention.

(a) POPA v. Romania (no. 38243/05)

The application was lodged on 19 October 2005 by Popa Eugen, born on 24 June 1952, and residing in Iaşi, Romania.

By a letter dated 14 April 2011, the Government submitted a unilateral declaration providing as follows:

> "The Government declares – by a way of this unilateral declaration – its acknowledgement of the excessive length of the criminal proceedings against the applicant Eugen Popa, as well as the absence of an effective remedy for the breach of Article 6 § 1 of the Convention in respect of the length of the proceedings. The Government is prepared to pay to the applicant as just satisfaction the sum of EUR 1,600, amount which it considers reasonable in the light of the Court's case-law. This sum is to cover all pecuniary and non-pecuniary damage as well as the costs and expenses resulting from the domestic proceedings until and including the date of the Court's acceptance of the present unilateral declaration, and will be free of any taxes that may be applicable. This sum will be payable in Romanian lei at the rate applicable at the date of payment to personal accounts of the applicant within three months from the date of the notification of the Court's decision pursuant to Article 37 § 1 of the Convention. In the event of failure to pay this sum within the said period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. Therefore, the Government respectfully invites the Court rule that the examination of the present application is no longer justified and to strike the application out of its list of cases, pursuant to Article 37 § 1 (c) of the Convention"

(b) VINTILĂ v. Romania (no. 39486/08)

The application was lodged on 15 July 2008 by Vintilă Mircea, born on 10 December 1959, and residing in Bucharest, Romania.

By letter dated 14 April 2011, the Government submitted a unilateral declaration providing as follows:

> "The Government declares – by a way of this unilateral declaration – its acknowledgement of excessive length of the domestic proceedings to which the applicant was a party. The Government is prepared to pay to the applicant as just satisfaction the sum of EUR 3,200, amount which it considers reasonable in the light of the Court's case-law. This sum is to cover all pecuniary and non-pecuniary damage as well as the costs and expenses and will be free of any taxes that may be applicable. This sum will be payable in Romanian lei at the rate applicable at the date of payment to personal accounts of the applicant within three months from the date of the notification of the decision pursuant to Article 37 § 1 of the Convention. In the event of failure to pay this sum within the said period, the Government undertake to pay simple interest on it, from expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. Therefore, the Government respectfully invites the Court rule that the examination of the present application is no longer justified and to strike the application out of its list of cases, pursuant to Article 37 § 1 (c) of the Convention."

2. The applicants' positions

The applicants expressed the view that the sums mentioned in the Government's declarations were unacceptably low and therefore refused the amounts proposed by the Government.

3. The Court's assessment

The Court recalls that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

It also recalls that in certain circumstances, it may strike out an application under Article 37 § 1(c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the case to be continued.

To this end, the Court will examine carefully the declarations in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (*Tahsin Acar v. Turkey*, [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established in a number of cases, including those brought against Romania, its practice concerning complaints about the violation of one's right to a hearing within a reasonable time (*Abramiuc v. Romania*, no. 37411/02, §§103-109, 24 February 2009).

Having regard to the nature of the admissions contained in the Government's declarations, as well as the amounts of compensation proposed – which are consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the applications (Article 37 § 1(c)).

Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the complaints on length of proceedings (Article 37 § 1 *in fine*).

Accordingly, this part of the applications should be struck out of the list.

B. Other Complaints

Relying on Articles 3, 5 §§ 1, 3, 4 and 5, 6 §§ 1 and 2 and 13 of the Convention, the applicants complained of further aspects related to the above proceedings.

Having regard to all the materials in its possession, and in so far as these complaints fall within its competence, the Court finds that there is no appearance of a violation of the rights and freedoms set out in these provisions in that respect. It follows that this part of the applications must be rejected as being manifestly ill-founded, pursuant to Article 35 §§ 1, 3 and 4 of the Convention.

For these reasons, the Court unanimously

Takes note of the terms of the respondent Government's declarations under Article 6 § 1 of the Convention regarding the length of the proceedings and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike the applications out of its list of cases in so far as they relate to the above complaint in accordance with Article 37 § 1 (c) of the Convention;

Declares the remainder of the applications inadmissible.

Marialena Tsirli	Ján Šikuta
Deputy Registrar	President